

[\*201] \*2. **Presumption of acceptance.**—Where a trustee, with notice of his appointment as trustee, has done nothing, but has not disclaimed, it will be presumed after a long lapse of time, as twenty years (*a*), and *a fortiori*, after thirty-four years (*b*), that he accepted the trust (*c*). And even where the deed was only four years old, Lord St. Leonards observed, “that where an estate was vested in trustees who *knew of their appointment* and did not object at the time, they would not be allowed afterwards to say they did not assent to the conveyance, and it would require some strong act to induce the Court to hold that in such a case the estate was divested. He spoke with respect to the

(*a*) *In re Uniacke*, 1 Jones & Lat. 1.

(*c*) But see *infra* as to renunciation

(*b*) *In re Needham*, 1 Jones & Lat.

of Probate.

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cover all his dealings with the estate; *Sheets' Est.* 52 Pa. St. 257; *Lansing v. Lansing*, 45 Barb. 182; *Towne v. Ammidown*, 20 Pick. 535; *State v. Nicols*, 10 Gill & J. 27; but not so, if the other duties are not performed because he is such executor; *Parsons v. Lyman*, 5 Blatchf. C. C. 170; *Mastin v. Barnard*, 33 Ga. 520; *Perkins v. Lewis*, 41 Ala. 649.

After a lapse of twenty years it will be presumed that funds are held as trustee and not as executor; *Jennings v. Davis*, 5 Dana, 127; likewise where the executor has had his final account allowed; *State v. Hearst*, 12 Mo. 365. A person acting in both capacities does not hold as trustee until his account as executor has been filed and approved; *Elliott v. Sparrell*, 114 Mass. 404; *Prior v. Talbot*, 10 Cush. 1; *Hall v. Cushing*, 9 Pick. 395; but in some cases it has been held that acts showing a change in the manner of holding are sufficient; *State v. Brown*, 68 N. C. 554; *Perkins v. Moore*, 16 Ala. 9; *Conkey v. Dickinson*, 13 Met. 53; *Hubbard v. Lloyd*, 6 Cush. 522; *Ruffin v. Harrison*, 81 N. C. 208; it is insufficient for the executor merely to decide to hold certain property as trustee; *Miller v. Congdon*, 14 Gray, 114; if there is any loss the courts incline to make it a loss as trustee, rather than as executor; *Dorr v. Wainwright*, 13 Pick. 332; *Brown v. Kelsey*, 2 Cush. 248; a refusal to qualify as executor is not a refusal to act as trustee; *Pomroy v. Lewis*, 14 R. I. 349; *Hitchcock v. U. S. Bank*, 7 Ala. 386.

The executor is to administer the trusts which his testator held at his decease; *Nichols v. Campbell*, 10 Gratt. 561; *Schenck v. Schenck*, 16 N. J. Eq. 174; *Maudlin v. Armistead*, 14 Ala. 702; he cannot accept those created by his testator and disclaim those with which the testator was charged; *King v. Lawrence*, 14 Wis. 238; *Mitchell v. Adams*, 1 Ired. Law. 298.

A trustee must accept the whole trust or none; *Van Horn v. Fonda*, 5 Johns. Ch. 403; *Latimer v. Hanson*, 1 Bland, 51; *Flint v. Clinton Co.* 12 N. H. 432; *Judice v. Provost*, 18 La. Ann. 601.

A trustee is responsible for what he does or neglects to do from the time of his acceptance, but not before; *Stevens v. Gaylord*, 11 Mass. 269; *Leland v. Felton*, 1 Allen, 531; *Ipswich Co. v. Story*, 5 Met. 310; *Prindle v. Holcomb*, 45 Conn. 111.